

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2015-000120

BETWEEN:

MS PRIYA SHARMA

Appellant

- and -

MERIDIAN FINANCIAL SERVICES LTD

Respondent

APPELLANT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Appellant claims she was subjected to race discrimination and harassment during her employment and that her subsequent dismissal constituted victimisation for having raised complaints about discriminatory treatment.

B. RELEVANT FACTS

2. The Appellant was employed as a Senior Analyst from September 2019 until her dismissal in March 2024.
3. Throughout her employment, the Appellant was subjected to microaggressions and exclusion from team events by her manager.
4. The Appellant raised a formal grievance alleging race discrimination in November 2023.
5. Two months after raising her grievance, the Appellant was placed on a Performance Improvement Plan.
6. The Appellant was dismissed in March 2024 allegedly for failing the PIP.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Equality Act 2010, ss.13, 26, 27, 39
 - Employment Rights Act 1996, s.98

D. SUBMISSIONS

8. The Appellant was treated less favourably than comparators because of her race.

9. The conduct of her manager constituted harassment related to race.
10. The timing of the PIP and dismissal demonstrates victimisation.
11. The burden shifts to the Respondent to prove non-discriminatory reasons.

E. AUTHORITIES

12. The following authorities are relied upon:

- Shamoon v Chief Constable of the Royal Ulster Constabulary [2003] UKHL 11
- Igen Ltd v Wong [2005] EWCA Civ 142
- Nagarajan v London Regional Transport [1999] IRLR 572

F. RELIEF SOUGHT

13. The Appellant respectfully requests that this Court:

- Declaration of discrimination
- Compensation for injury to feelings
- Compensation for financial loss
- Recommendation
- Costs

Catherine Roberts KC

Catherine Roberts

29 November 2020

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